

Smt. Pinki Debnath vs Sri Jhutan Debnath on 1 July, 2026

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HIGH COURT OF TRIPURA

AGARTALA

Mat.App. No.12 of 2026

Smt. Pinki Debnath, W/o Sri Jhutan Debnath, D/o Sri Tushar Debnath, R/o
Birchandranagar, P.S. Manpathar, P.O. Santirbazar, Dist- South Tripura

.....Appellant(s);

Versus

Sri Jhutan Debnath, S/o Lt. Niranjana Debnath, R/o Patunagar, P.O.
Durjoynagar, P.S. Airport, Dist- West Tripura

.....Respondent(s)

For Appellant(s) : Mr. Arjun Acharjee, Advocate, Ms. Arshita Dey, Advocate.

For Respondent(s) : None.

HON'BLE THE CHIEF JUSTICE MR. M.S. RAMACHANDRA RAO HON'BLE MR. JUSTICE BISWAJIT PALIT Order 01/07/2026 This Appeal is preferred by the appellant-wife challenging the judgment dt.26.03.2026 and decree dt.07.04.2026 of the Additional Judge, Family Court, Agartala, West Tripura in T.S. (Divorce) 164 of 2025.

2. The respondent was the husband of the appellant.

3. The respondent had previously filed T.S. (RCR) 14 of 2021 before the said Court seeking restitution of conjugal rights by the appellant under Section 9 of the Hindu Marriage Act, 1955.

4. After contest, the said application was allowed by the said Court on 01.07.2023.

5. Challenging the same, the appellant herein filed Mat.App. No.33/2024 before this Court.

6. During the hearing of the said Appeal, counsel for the appellant informed this Court that the appellant was not interested in rejoining her husband or leading a conjugal life, even though counsel for the respondent-

TRHC010011812026 2026:THC:800-DB husband stated that his client wished to take back the appellant and live with her.

7. Faced with the stand taken by the appellant, this Court disposed of Mat.App. No.33/2024 on 28.01.2025 observing that it cannot pressurize the parties to stay together and lead a conjugal life against their wishes, and despite the existence of an order for restitution of conjugal rights, its

enforcement has become practically impossible, and so the said judgment granting restitution of conjugal rights to the respondent-husband shall remain for future reference, but he cannot compel the appellant-wife to join him to lead a conjugal life.

8. It granted liberty to both the parties to avail remedies under the law.

9. Thereafter the respondent-husband filed T.S. (Divorce) 164 of 2025 before the Additional Judge, Family Court, Agartala, West Tripura for divorce contending that in spite of several requests on his part asking the appellant to join and resume conjugal life with him, she did not do so and more than one year and half had elapsed since the passing of the decree in the restitution of conjugal rights application.

10. He therefore sought for dissolution of marriage between the parties.

11. The appellant received the summons which was served through Speed Post mode, but she did not turn up in the reconciliation and also did not contest the divorce petition by filing written statement.

12. She was set ex parte on 10.11.2025.

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13. Thereafter the respondent examined three witnesses and marked Exhibits-1 & 2.

14. The appellant did not adduce any evidence.

15. After considering the materials on record, the Additional Judge, Family Court, West Tripura, Agartala applied Section 13(1-A) (ii) of the Hindu Marriage Act, 1955, and after recording of finding that the appellant had not resumed cohabitation with the respondent within one year from the date of passing of the decree of restitution of conjugal rights under Section 9 of the Act of 1955, allowed the divorce petition.

16. Challenging the same, this Appeal is filed by the appellant-wife.

17. Counsel for the appellant contends that in the impugned order, there is no reference to award of permanent alimony or maintenance to the appellant, and therefore this Appeal should be entertained and the appellant should be allowed to pursue the said claims in this Court.

18. We may point out that neither in the application filed by the husband for restitution of conjugal rights, nor the Appeal filed by the wife against the judgment rendered in the said application, the appellant had claimed permanent alimony or maintenance.

19. In the divorce petition filed by the husband, though summons were served on her, she did not enter appearance and make any claim before the Trial Court.

20. It is not as if the appellant-wife has any ground to contest the decree of divorce in view of the stand taken by her before this Court in Mat.App. No.33/2024 that she has no wish to rejoin her husband.

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21. Therefore there is no error in the judgment passed by the Trial Court granting decree of divorce to the respondent.

22. Therefore, we do not find any reason to entertain this Appeal filed by the appellant, and therefore we dismiss the Appeal while granting the appellant liberty to avail any other remedy for claiming maintenance or permanent alimony in the appropriate forum.

23. Appeal stands dismissed with the above liberty. No costs. (BISWAJIT PALIT, J) (M.S. RAMACHANDRA RAO, CJ) Pijush/ PIJUSH KANTI NAG Digitally signed by PIJUSH KANTI NAG
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